

STATE OF NEW YORK

7165--A

2025-2026 Regular Sessions

IN SENATE

April 3, 2025

Introduced by Sen. HINCHEY -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public service law, in relation to authorizing consideration of non-economic loss suffered by consumers when determining penalties

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 25 of the public service law is amended by adding a
2 new subdivision 8 to read as follows:

3 8. In determining penalties pursuant to this section, including any
4 negotiated settlement agreements between the department, the commission,
5 and a public utility company, corporation or person and the officers,
6 agents and employees thereof, the commission may consider non-economic
7 loss suffered by consumers including, but not limited to, pain and
8 suffering or mental anguish.

9 § 2. Section 25-a of the public service law is amended by adding a new
10 subdivision 12 to read as follows:

11 12. In determining penalties pursuant to this section, including any
12 negotiated settlement agreements between the department, the commission,
13 and a combination gas and electric corporation or the officers thereof,
14 the commission may consider non-economic loss suffered by consumers,
15 including but not limited to, pain and suffering or mental anguish.

16 § 3. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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